

parties to the suit, but the Court may upon the consideration of the matter on the hearing, if it shall so think fit, order such persons to be made parties.

(108).

January 1842.
When heir-at-law be party in suit to execute trusts of will.

That in suits to execute the trusts of a will it shall not be necessary to make the heir-at-law a party; but the plaintiff shall be at liberty to make the heir-at-law a party where he desires to have the bill established against him.

(109).

January 1842.
Persons against whom joint and several demands exist.

That in all cases in which the plaintiff has a joint and several demand against several persons, either as principals or sureties, it shall not be necessary to bring before the Court as parties to a suit concerning such demand all the persons liable thereto; but the plaintiff may proceed against one or more of the persons severally liable.

(121).

January 1842.
Decree absolute against party making default at the hearing.

That, where a defendant makes default at the hearing of a cause, the Decree shall be absolute in the first instance without giving the defendant a day to show cause, and such Decree shall have the same force and effect as if the same had been a Decree *nisi* in the first instance, and afterwards made absolute in default of cause shown by the defendant.

(128).

January 1852.
Petition of rehearing not to set out proceedings anterior to Decree,

That in any petition of rehearing of any Decree or Order of the Court it shall not be necessary to state the proceedings anterior to the Decree or Order appealed from or sought to be reheard.

&c.

(132).

March 1843.
Solicitor's Agent's names to be entered on Solicitor's book.

That all Solicitors, practising by agents having offices in the City of Toronto, and all Solicitors practising in the said Court, not having an office in the said city, shall enter their names in a book to be called the Solicitor's Book and to be kept publicly at the Registrar Office to be there inspected without fee or reward; in which book the Solicitors aforesaid shall specify the name of an agent being a Solicitor of this Court, and having an office of business as such Solicitor in the said City of Toronto by whom such principal proposes to transact his Court business and upon whom all writs, notices, orders, warrants, rules, and other documents, proceedings, and written communications may be served.

(134).

March 1843.
Office copies of pleadings and proceedings to be made by Registrar.

That, whereas heretofore it has been the practice for the Registrar of the Court to supply office copies of all proceedings and pleadings filed in his office, and it is convenient and desirable that such practice should be altered, It is therefore ordered that in future copies of all proceedings and pleadings to be made and delivered by the Solicitor or agent with whom the Draft or Drafts thereof shall originate, and that such copies before being delivered shall be examined and certified by the Registrar, for doing

which the solicitor examination thereof, satisfied not to be allowed, notwithstanding that the minutes, decrees, and orders, in respect heretofore.

That from an affidavit in support of a motion, perused at the hearing, and the affidavit or affidavits receive the same manner before the affidavit or affidavits within such time, the same may be done.

That from any affidavit or affidavit which an office copy may be read, a copy would be on occasion of reading.

That in case of office copy of a document shall not deliver two clear days spoken (as on preceding) any further of the same to whom such shall be written, as now practice.

That, whereof thereof filed, and the opposite party hereafter be notified, the party the answer be required.

That in the on upon attachment Court for a copy any other sum by this Court,